

OKAN TOWER EB-5 LENDER, LLC
SUBSCRIPTION AGREEMENT

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EXHIBITS

- EXHIBIT A - INVESTOR INFORMATION FORM
- EXHIBIT B - CERTIFICATE OF FOREIGN STATUS OF BENEFICIAL OWNER
FOR UNITED STATES TAX WITHHOLDING

Name of Subscriber: _____
Number of Registration: _____
NON-U.S. PURCHASER

THE MEMBERSHIP INTERESTS REPRESENTED BY THIS INSTRUMENT HAVE BEEN ACQUIRED FOR INVESTMENT AND HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR ANY STATE SECURITIES LAWS, EITHER PURSUANT TO APPLICABLE EXEMPTIONS WITHOUT SUCH REGISTRATION, THESE MEMBERSHIP INTERESTS MAY NOT BE SOLD, PLEDGED, HYPOTHECATED OR OTHERWISE TRANSFERRED WITHIN THE UNITED STATES AT ANY TIME WHATSOEVER, EXCEPT UPON DELIVERY TO THE COMPANY OF AN OPINION OF COUNSEL SATISFACTORY TO THE MANAGER OF THE COMPANY THAT REGISTRATION IS NOT REQUIRED FOR SUCH TRANSFER OR THE SUBMISSION TO THE MANAGER OF THE COMPANY OF SUCH OTHER EVIDENCE AS MAY BE SATISFACTORY TO THE MANAGER TO THE EFFECT THAT ANY SUCH TRANSFER WILL NOT BE IN VIOLATION OF THE SECURITIES ACT OF 1933, AS AMENDED, OR OTHER APPLICABLE STATE OR FEDERAL SECURITIES LAWS OR ANY RULE OR REGULATION PROMULGATED THEREUNDER. ADDITIONALLY, ANY SALE OR OTHER TRANSFER OF THESE MEMBERSHIP INTERESTS IS SUBJECT TO CERTAIN RESTRICTIONS THAT ARE SET FORTH IN THIS AGREEMENT AND THE OPERATING AGREEMENT. HEDGING UNITS MAY NOT BE CONDUCTED EXCEPT IN COMPLIANCE WITH THE SECURITIES ACT, THIS AGREEMENT AND THE OPERATING AGREEMENT.

NO PARTY EXCEPT THE COMPANY IS RESPONSIBLE FOR THE CONTENTS OF THE OFFERING MEMORANDUM, AND NO OTHER PARTY EXCEPT AUTHORIZED SALES AGENTS WILL BE INVOLVED IN THE OFFERING OF UNITS UNDER THE OFFERING MEMORANDUM OR THE ACCEPTANCE OF SUBSCRIPTIONS FROM SUBSCRIBERS. NEITHER THE DEVELOPER NOR THE DEVELOPER PRINCIPAL ASSUME ANY RESPONSIBILITY FOR THE OFFERING MEMORANDUM EXCEPT FOR THE INFORMATION PROVIDED BY IT PURSUANT TO THIS OFFERING.

OKAN TOWER EB-5 LENDER, LLC

SUBSCRIPTION AGREEMENT

THIS SUBSCRIPTION AGREEMENT (this “**Agreement**”) is made and entered into as of the date shown on the signature page hereof, by the undersigned subscriber (“**Subscriber**” and, once his or her subscription is accepted by the Company and he or she is admitted to the Company and becomes a member of the Company, the “**Investing Member**”) identified on the signature page of this Agreement, and **OKAN TOWER EB-5 LENDER, LLC**, a Delaware limited liability company (the “**Company**”), and if accepted by the Company in writing in accordance with the terms hereof, then this Agreement shall be by and between the Subscriber and the Company. Capitalized terms not otherwise defined herein shall have the meanings ascribed to such terms as provided in the Offering Memorandum (defined below).

RECITALS:

A. Pursuant to a Confidential Private Placement Memorandum dated as of March 10, 2026 (the “**Offering Memorandum**”), the Company is offering for purchase (the “**Offering**”) only to a limited number of individual investors who are (i) not “U.S. persons,” as such term is defined in Rule 902(k) of the Securities Act of 1933, as amended (the “**Securities Act**”), in compliance with Regulation S, on a limited and private basis; or (ii) “accredited investors,” as defined in Rule 501 under the Securities Act and pursuant to Regulation D of the Securities Act and/or who otherwise comply with Regulation D of the Securities Act, a maximum of one hundred sixty-four (164) units (“**Units**”) of membership interests in the Company (“**Membership Interests**”), representing total Capital Contributions (defined below) to the Company of One Hundred Thirty-One Million and Two Hundred Thousand Dollars (\$131,200,000) (the “**Maximum Offering Amount**”). The terms and conditions applicable to holders of the Units are described in the Operating Agreement of the Company (the “**Operating Agreement**”) entered into by and among the manager of the Company, Okan Tower EB-5 Manager, LLC, a Delaware limited liability company (the “**Manager**”), and each of the Subscribers for Units whose subscriptions are accepted by the Manager.

B. As of the date of this Offering, Subscribers for Units must subscribe for Eight Hundred and Thousand Seventy Dollars (\$870,000), representing the Eight Hundred Thousand Dollar (\$800,000) capital contribution (the “**Capital Contribution**”) and the non-refundable Seventy Thousand Dollar administrative fee (\$70,000) (the “**Administrative Fee**”). Subscribers, in the aggregate, will own one hundred percent (100%) of the Membership Interests in the Company, and each Subscriber shall be issued a Unit that represents membership interest in the Company, as more fully described in the Operating Agreement.

C. The Company has been organized to provide a loan (the “**EB-5 Loan**”) to Miami 6th Street Holdings LLC, a Florida limited liability company (the “**Borrower**”), for the development of a proposed 72-story, mixed use tower that will include 163 condominium residences, 236 condotel units, a 316-room Hilton Bayfront Miami Hotel, and 67,588 square feet (of office space along with a full complement of amenities (collectively, the “**Project**”), located within Miami-Dade County, Florida at 555 North Miami Avenue, Miami, FL 33136. The Project is being developed by Miami 6th Street LLC, a Florida limited liability company (the “**Developer**” and “**JCE**”), whose main principal is Bekir Okan, an individual (the “**Developer Principal**”).

D. The Company shall retain Baker Tilly Advisory Group, LP, a leading advisory CPA firm (“**Baker Tilly**”), or such other independent and unaffiliated third-party financial servicer (in any case, the “**Fund Administrator**”) to serve as a “fund administrator” as required under the EB-5 Reform and Integrity Act of 2022 (the “**New EB-5 Legislation**”), providing certain fund administration services (including, but not limited to, serving as a co-signatory on the Company’s escrow account and general operating account, the Borrower’s segregated account, and the JCE’s segregated account established solely for purposes of receiving advances of the EB-5 Loan from the Company).

E. Florida First Regional Center, LLC, a Florida limited liability company (the “**Regional Center**”)¹, is an approved regional center under the EB-5 Program (the “**EB-5 Program**”) with the United States Citizenship and Immigration Service (“**USCIS**”) authorized under The Immigration Act of 1990 (IMMACT 90), effective November 29, 1990 (the “**Immigration Act**”), for purposes of authorizing foreign investors in the Company to include both direct and indirect job creation from investment in participating businesses toward qualification for the EB-5 Program, and it will be granting the Project the rights to utilize the EB-5 Program to raise capital for the development and operation of the Project. The Regional Center agreed to sponsor the Project for participation in the EB-5 Program pursuant to a Regional Center Administrative Agreement entered into between the Regional Center, Company and Manager to utilize the EB-5 Regional Center designation in connection with the EB-5 Loan to the Borrower (the “**Regional Center Agreement**”), whereby the Project will, in turn, create jobs. The Regional Center is unaffiliated with the Company, Manager, Fund Administrator, Borrower, Developer and Developer Principal.

F. The Units are being offered for sale on a “minimum/maximum basis.” Each Subscriber’s (i) Administrative Fee shall be paid directly to the Manager upon subscription; and (ii) Capital Contribution shall be deposited into an escrow account held with Customers Bank, a Pennsylvania financial institution, or any comparable banking institution experienced in the EB-5 industry, as determined by the Company, to serve as the escrow agent (in any case, the “**Escrow Agent**”) pursuant to an escrow agreement between the Escrow Agent, Manager, Company and Fund Administrator, that is substantially in the form attached as an exhibit to the Offering Memorandum, or such other form as the Company negotiates with the Escrow Agent and determines is consistent with the EB-5 industry (in any case, the “**Escrow Agreement**”). In connection therewith, no Capital Contribution will be released to the Company’s general operating account, but rather to a new separate account (as required under the New EB-5 Legislation) for purposes of funding the EB-5 Loan to the Borrower, and in turn, the JCE, unless and until the Escrow Release Conditions (defined in the Offering Memorandum) have been satisfied, which conditions include, but are not limited to, the filing of the Investing Member’s Form I-526E “Immigrant Petition by Regional Center Investor” (“**I-526E Petition**”) with USCIS.

G. Each Investing Member recognizes and agrees that the Company will commence operations and has a need for the Capital Contributions of Investing Members before Investing Members’ I-526E Petitions are approved by USCIS. Therefore, all or a portion of an Investing Member’s Capital Contribution will be released by the Escrow Agent pursuant to Written Direction (as defined in the Escrow Agreement) of the Fund Administrator and Manager on behalf of the Company prior to I-526E Petition approval.

H. Upon an Investing Member receiving an I-526E Petition Denial and such Investing Member requests that the Company return his or her Capital Contribution, the Company shall return such Capital Contribution as set forth in and subject to the provisions of “*I. OFFERING*”

¹ The Regional Center originally received its regional center designation from USCIS on May 26, 2015, with an approved geographic area including 4 counties in the state of Florida. On May 9, 2017, USCIS approved a requested amendment to the regional center to expanded the approved geographical area encompassing 4 additional counties in the state of Florida. On June 13, 2024, the Regional Center received approval of its Form I-956 changing its ownership and further expanding its territory to 38 counties in the state of Florida. A copy of the Regional Center’s original approval letter and amendments are attached as an exhibit to the Project Business Plan.

SUMMARY – Transfer of Subscription Funds,” in the Offering Memorandum. In any case, any repurchase by the Company of a denied Investing Member’s Membership Interest through the return of such denied Investing Member’s Capital Contribution in accordance with the terms hereof shall be made using available cash. (See “*I. OFFERING SUMMARY – Transfer of Subscription Funds,”* in the Offering Memorandum.)

I. The Offering has been structured so that each Subscriber, by subscribing for a Unit and becoming a member of the Company, will have made an investment that qualifies as the investment component required for an I-526E Petition that entitles the Subscriber to seek permanent United States residency and, ultimately, to apply for U.S. citizenship, provided that the Subscriber otherwise satisfies the non-investment criteria for an EB-5 Visa (“**EB-5 Visa**”), as more fully described in the Offering Memorandum. The Investing Member, at his or her sole cost and expense, will arrange for an immigration attorney to file his or her I-526E Petition following acceptance of the subscription and admission as a member of the Company; provided, that the Company may require that an immigration attorney selected by the Company review the I-526E Petition to ensure consistency with this Offering Memorandum, in which case the Investing Member will be required to pay such immigration attorney’s fee for performing such review. Separately, Investing Members will be required to pay to USCIS a total of \$4,675 (which includes an I-526E Petition filing fee of \$3,675 and a \$1,000 EB-5 Integrity Fund fee as described within the RIA). No portion of these fees shall be paid to the Company or be deemed a portion of the Capital Contribution or Administrative Fee.

J. In addition to executing this Agreement and remitting the purchase price for the Units subscribed for hereunder to the Company, as described herein, the Subscriber will also need to execute the Company’s Operating Agreement and deliver the executed Operating Agreement to the Company in order to complete its subscription hereunder. ***Please review the Operating Agreement in its entirety.***

K. The Offering has commenced as of the date set forth above and will end on March 31, 2027 at 5:00 p.m. EST, unless extended by mutual agreement of the Manager and Developer until September 30, 2027 (the “**Offering Period**”).

L. Subject to the terms of the Operating Agreement, the Subscriber irrevocably commits the Subscriber’s Capital Contribution to the Company upon payment thereof to the Company.

AGREEMENT

NOW, THEREFORE, the Subscriber and Company hereby agree as follows:

1. Subscription. The Subscriber hereby irrevocably subscribes for and agrees to purchase the Unit indicated on the signature page of this Agreement. Payment of the Capital Contribution and Administrative Fee shall be paid upon subscription as follows:

\$800,000 Capital Contribution by wire transfer to:

Wire to:	Customers Bank 101 Park Avenue New York, NY 10178
ABA #:	031302971
SWIFT Code:	CUESUS33
Account Name:	Customers Bank as Escrow Agent for Okan Tower EB-5 Lender, LLC and Okan Tower EB-5 Manager, LLC, fbo its Subscribers
Account Number:	3394878
Reference (required):	[FBO Investor Name]

\$70,000 Administrative Fee by wire transfer to:

Wire to:	Customers Bank 101 Park Avenue New York, NY 10178
ABA #:	031302971
SWIFT Code:	CUESUS33
Account Name:	Okan Tower EB-5 Manager, LLC
Account Number:	7519964
Reference (required):	[FBO Investor Name]

2. Parental Guardian Consent of Minor. To the extent that the Subscriber who is funding subscription proceeds directly is a minor child under applicable law (usually 18 years old), including the applicable jurisdiction provided for in the Offering documents, the Subscriber's parent or legal guardian must co-sign this Agreement and Operating Agreement in order to validate the subscription documents.

In the event that the minor Subscriber's subscription proceeds are paid from a bank account whereby the Custodian (as defined under the applicable law of the jurisdiction provided for in the Offering documents) gifted such funds to the minor Subscriber under a custodial account, then the Custodian must co-sign this Agreement and Operating Agreement in order to validate the subscription documents.

Although the Company will accept subscriptions by a minor that conform to these instructions, all minor Subscribers and their guardians or custodians should speak to their U.S. immigration counsel regarding compliance with USCIS evidentiary requirements.

3. Subscription by U.S. Resident. In the event that Subscriber resides in the U.S., then arrangements may need to be made to have an offshore designee/parent execute the subscription documents outside of the United States.

4. Acceptance of Subscription. Subscriber understands and agrees that the Subscriber's subscription for a Unit hereunder may be rejected by the Manager at any time in its sole discretion. If the subscription is accepted, the Manager will notify Subscriber of same and the scheduled date of closing. If the subscription is rejected, all funds received from the Subscriber will be returned without interest and thereafter this Agreement shall be of no further force or effect.

5. Subscriber's Acknowledgment of Restrictions on Transfer; No Right to Require Registration. THE MEMBERSHIP INTERESTS REPRESENTED BY THIS INSTRUMENT HAVE BEEN ACQUIRED FOR INVESTMENT AND HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR ANY STATE SECURITIES LAWS (COLLECTIVELY, "**SECURITIES LAWS**"), EITHER PURSUANT TO APPLICABLE EXEMPTIONS. WITHOUT SUCH REGISTRATION, THESE MEMBERSHIP INTERESTS MAY NOT BE SOLD, PLEDGED, HYPOTHECATED OR OTHERWISE TRANSFERRED WITHIN THE UNITED STATES AT ANY TIME WHATSOEVER, EXCEPT UPON DELIVERY TO THE COMPANY OF AN OPINION OF COUNSEL SATISFACTORY TO THE MANAGER OF THE COMPANY THAT REGISTRATION IS NOT REQUIRED FOR SUCH TRANSFER OR THE SUBMISSION TO THE MANAGER OF THE COMPANY OF SUCH OTHER EVIDENCE AS MAY BE SATISFACTORY TO THE MANAGER TO THE EFFECT THAT ANY SUCH TRANSFER WILL NOT BE IN VIOLATION OF THE SECURITIES ACT OF 1933, AS AMENDED, OR OTHER APPLICABLE STATE OR FEDERAL SECURITIES LAWS OR ANY RULE OR REGULATION PROMULGATED THEREUNDER. ADDITIONALLY, ANY SALE OR OTHER TRANSFER OF THESE MEMBERSHIP INTERESTS IS SUBJECT TO CERTAIN RESTRICTIONS THAT ARE SET FORTH IN THE COMPANY'S OPERATING AGREEMENT. ADDITIONALLY, THE SUBSCRIBER ACKNOWLEDGES THAT NEITHER THE COMPANY NOR THE MANAGER IS OBLIGATED TO REGISTER THE UNITS UNDER THE SECURITIES LAWS. SUBSCRIBER FURTHER UNDERSTANDS THAT THE TRANSFER OF THE UNITS MAY BE SUBSTANTIALLY RESTRICTED BY THE SECURITIES LAWS AND BY THE ABSENCE OF A TRADING MARKET THEREFOR, AND THE TRANSFER OF THE UNITS IS ADDITIONALLY RESTRICTED BY THE TERMS OF THE OPERATING AGREEMENT; THAT NO TRADING MARKET FOR THE UNITS EXISTS AND NONE IS EXPECTED TO DEVELOP; AND THAT ANY SALE OR OTHER DISPOSITION OF THE UNITS MAY RESULT IN UNFAVORABLE TAX CONSEQUENCES TO THE SUBSCRIBER. THE SUBSCRIBER ACKNOWLEDGES THAT THE RESTRICTIONS ON THE TRANSFERABILITY OF THE UNITS ARE SUBSTANTIAL AND MAY REQUIRE THE SUBSCRIBER TO HOLD THE UNITS INDEFINITELY. THE SUBSCRIBER HEREBY REPRESENTS AND WARRANTS THAT THE SUBSCRIBER HAS ADEQUATE MEANS OF PROVIDING FOR THE SUBSCRIBER'S CURRENT AND FUTURE NEEDS AND POSSIBLE PERSONAL CONTINGENCIES AND HAS NO NEED FOR LIQUIDITY OF THE UNITS.

6. Subscriber's Representations and Warranties. The Subscriber additionally represents and warrants as follows:

(a) The Subscriber understands that the offer and sale of the Units have not been registered under the Securities Act, any state securities or “blue sky” laws, or any rules or regulations promulgated thereunder (*i.e.*, the Securities Laws), pursuant to applicable exemptions. The Subscriber acknowledges that the Company is not obligated to register the Unit under the Securities Laws. In addition to restrictions on transferability pursuant to the Operating Agreement, without such registration, such Unit may not be sold, pledged, hypothecated or otherwise transferred at any time whatsoever, except upon delivery to the Company of an opinion of counsel satisfactory to the Manager and the Company that registration is not required for such transfer or the submission to the Manager of such other evidence as may be satisfactory to the Manager and the Company to the effect that any such transfer will not be in violation of the Securities Laws. Subscriber further understands that any transfer of the Unit may be substantially restricted by the absence of a trading market therefor and none is expected to develop, and that any sale or other disposition of the Unit may result in unfavorable tax consequences to the Subscriber. The Subscriber acknowledges that the restrictions on the transferability of the Unit are substantial and may require the Subscriber to hold the Unit indefinitely.

(b) The Subscriber is acquiring the Unit solely for the account of the Subscriber for investment purposes only and not for distribution or resale to others. The Subscriber will not resell or offer to resell all or a portion of the Unit, except in accordance with (i) Regulation S of the Securities Act (Rules 901 through 905 and Preliminary Statement), pursuant to registration under the Securities Act or pursuant to an available exemption from registration under the Securities Act; and (ii) this Agreement. Subscriber will not engage in any hedging transactions involving the Unit, except in compliance with the Securities Laws and this Agreement. Without limiting the generality of the provisions set forth herein, the Subscriber consents to the placement of substantially the legend on any document representing the Units being purchased by the Subscriber, if applicable, stating that any transfer of the Units is prohibited, except in accordance with (A) Regulation S of the Securities Act (Rules 901 through 905 and Preliminary Statement), pursuant to registration under the Securities Act or pursuant to an available exemption from registration under the Securities Act; and (B) this Agreement.

(c) Subscriber (i) is not a U.S. Person, is not a citizen or resident alien of the United States, is not acquiring the Units for the account or benefit of any U.S. Person, did not receive the Offering Memorandum or an offer to purchase the Unit in the United States and did not execute this Agreement and pay the amounts specified thereunder from within the United States; or (ii) is an “accredited investor,” as defined in Rule 501 under the Securities Act acquiring the Units in a transaction not requiring registration under the Securities Act in reliance upon Regulation D of the Securities Act and/or otherwise complies with Regulation D of the Securities Act. If requested by the Company, Subscriber further agrees to execute and deliver to the Company an executed IRS Form W-8BEN certifying that he or she is a Non-Resident Alien.

(d) The Subscriber is a bona fide resident of the country set forth in his or her address in this Agreement, and agrees that if his or her principal residence changes prior to his or her purchase of a Unit, he or she will promptly notify the Manager.

(e) The Subscriber acknowledges that the offer and sale of the Units is not taking place within the United States, but rather in an “offshore transaction,” as defined in Rule 902 of Regulation S adopted by the Securities Exchange Commission pursuant to the Securities Act, and that no “directed selling efforts” took place within the United States in compliance with Regulation S, unless the Subscriber is an “accredited investor” as such term is defined in Rule 501(A) under the Securities Act in compliance with Regulation D of the Securities Act and/or otherwise complies with Regulation D of the Securities Act. The term “United States” means the United States of America, its territories and possessions, any state of the United States and the District of Columbia.

(f) The Subscriber’s financial condition is such that he or she has no need for liquidity with respect to his or her investment to satisfy any existing or contemplated undertaking or indebtedness and is able to bear the economic risk of his or her investment for an indefinite period of time, including the risk of losing all of his or her investment.

(g) The Subscriber understands that the Project has not yet been established and it has no operating history. The Project is in its early stages of development, is not currently generating any revenue, and its future profitability cannot be assured.

(h) The Subscriber understands that: (i) his or her subscription for a Unit is irrevocable until the Offering Period ends without the Company’s written consent; (ii) an investment in the Unit is a speculative investment that involves a high degree of risk, including the risk of loss of the entire investment of the Subscriber in the Company; (iii) no federal or state agency has passed upon the adequacy or accuracy of the information made available to the Subscriber, or made any finding or determination as to the fairness for investment, or any recommendation or endorsement of the Unit as an investment; (iv) any anticipated federal and/or state income tax benefits applicable to the Unit may be lost through changes in, or adverse interpretations of, existing laws and regulations; and (v) there is no assurance that the Company will ever be profitable, or that the Subscriber’s investment in the Unit will ever be recoverable.

(i) The Subscriber acknowledges that there is no assurance that his or her I-526E Petition will be granted or, if it is, that Subscriber will ultimately be approved for conditional or unconditional lawful permanent residence in the U.S. or be able to become a U.S. citizen. Neither the Company, Regional Center, Borrower, Developer nor the Company’s immigration counsel has made any effort to pre-determine Subscriber’s personal qualifications and circumstances and whether the Subscriber is likely or not likely to obtain favorable action on its I-526E Petition or EB-5 Visa, and that there are numerous reasons that will result in the Subscriber being denied residency in the United States, including, without limitation, the Project failing to qualify as an approved project for the EB-5 Program.

(j) The Subscriber (i) has been provided with a copy of the Offering Memorandum, including, as exhibits thereto, the Escrow Agreement, this Agreement and the Operating Agreement, and has reviewed same; (ii) has been given complete access to all documents, records, contracts and books of or relating to the Company and the Unit, and all other information reasonably requested by the Subscriber; and (iii) has performed a complete examination of all such documents, records, contracts and books to the extent deemed necessary by the Subscriber in reaching the Subscriber’s decision to invest in the Company. The Subscriber

further acknowledges and confirms that the Subscriber has had an opportunity to ask questions of and receive answers from the Company, Borrower and Developer concerning the Unit, the prospective contemplated business and purpose of the Company, and any other matter the Subscriber has deemed relevant, and all such inquiries have been answered to the Subscriber's satisfaction. In addition, Subscriber acknowledges that he or she has had and may have, at any reasonable hour, after reasonable prior notice, access to the financial and other records of the Company which the Company can obtain without unreasonable effort or expense, and further acknowledges that Subscriber has obtained, in Subscriber's judgment, sufficient information from the Company to evaluate the merits and risks of an investment in the Unit.

(k) The Subscriber acknowledges that: (i) the risks inherent to this investment have been fully considered; (ii) the Manager will have substantial and exclusive authority to conduct the operation of the Company; and (iii) an investment in the Unit has neither been approved nor disapproved by the Securities and Exchange Commission or any other federal, state or local department or agency of any other jurisdiction, and such authorities have not passed upon the adequacy or accuracy of the disclosure provided to investors in connection with an investment in the Unit.

(l) The Subscriber acknowledges that neither the Company, Manager, the Regional Center nor any representative of the Company, the Manager or the Regional Center has made any representations or warranties in respect of the Developer's business or profitability. Without limiting the generality of the foregoing, the Subscriber acknowledges and agrees that information, including any business plan or financial projections or forecasts or other information contained in written materials provided or made available to the undersigned, and any oral, visual or other presentations made by the Company, the Manager or the Regional Center or its representatives to the Subscriber shall not be deemed a representation or warranty in respect of the matters therein. Subscriber acknowledges that the Offering Memorandum contains information that the Developer and the Company believe is accurate and, as such information relates to the projected revenues and expenses of the Developer, data that the Developer believes is a reasonable forecast of the results that the Developer will achieve; however, as an accredited, experienced and sophisticated investor, Subscriber (or his or her purchaser representative) is aware that there are many foreseeable and unforeseeable events that could cause the assumptions underlying the financial projections to not materialize, and the results of same may cause material adverse consequences to the financial results of the Developer and the Company.

(m) In making the decision to purchase the Unit, Subscriber has relied solely upon independent investigations made by the Subscriber, and the Subscriber further represents and warrants that the Subscriber is not acquiring the Unit as a result of any advertisement, article, notice or other communication published in any newspaper, magazine or similar media distributed in the United States, any seminar in the United States or any solicitation by a person in the United States not previously known to the Subscriber, and that the Subscriber is not aware of any general solicitation within the United States or general advertising within the United States regarding the purchase or sale of the Unit. The Subscriber acknowledges and confirms that he or she is not relying upon any statement, representation or warranty made by the Company or its respective representatives in making a decision to subscribe for the Unit. The Subscriber must rely solely on the terms of the Operating Agreement for the terms of the Subscriber's participation in the Company and the rights and responsibilities of owning its Unit.

(n) The Subscriber understands that the Company and the Manager will be relying on the accuracy and completeness of all matters set forth in this Agreement, and the Subscriber represents and warrants to the Company, the Manager and each of their affiliates that the information, representations, warranties, acknowledgments and all other matters set forth in this Agreement with respect to the Subscriber are complete, true and correct and does not fail to include any material fact necessary to make the facts stated, in light of the circumstances in which they are made, not misleading, and may be relied upon by them in determining whether the offer and sale of a Unit to the Subscriber is exempt from registration under the Securities Laws, and the Subscriber will notify them immediately of any change in any statements made in this Agreement that occurs prior to the consummation of the purchase of a Unit.

(o) The Subscriber is in compliance with all applicable provisions of the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 (the “**USA Freedom Act**”), the U.S. Bank Secrecy Act (the “**BSA**”) and all other anti-money laundering laws and applicable regulations adopted to implement the provisions of such laws, including policies and procedures that can be reasonably expected to detect and cause the reporting of transactions under Section 5318 of the BSA. The Subscriber is not and shall not be a person: (i) acting, directly or indirectly, on behalf of terrorists or terrorist organizations, including those persons or entities that are included on any of the OFAC lists; (ii) listed on, residing in or having a place of business in a country or territory named on any of such lists or which is designated as a Non-Cooperative Jurisdiction by the Financial Action Task Force on Money Laundering (“**FATF**”), or whose funds are from or through such a jurisdiction; (iii) that is a “Foreign Shell bank” within the meaning of the USA Freedom Act; or (iv) residing in or organized under the laws of a jurisdiction designated by the U.S. Secretary of the Treasury under Sections 311 or 312 of the USA Freedom Act as warranting special measures due to money-laundering concerns.

(p) The Subscriber (i) has accurately completed the Investor Information Form that is an exhibit to this Agreement; (ii) is a “sophisticated person” in that Subscriber has such knowledge and experience in financial and business matters that individually and/or with the aid of advisers, it is capable of evaluating the merits and risks of an investment in the Company by making an informed investment decision with respect thereto; and (iii) has accurately completed the Confidential Prospective Investor Questionnaire, attached as an exhibit to the Offering Memorandum, unless the Subscriber is otherwise represented by a purchaser representative and/or otherwise complies with Regulation D of the Securities Act.

(q) If the Subscriber is (i) a purchaser in a sale that occurs outside the United States within the meaning of Regulation S or (ii) a “distributor”, “dealer” or person “receiving a selling concession, fee or other remuneration” in respect of Units sold, prior to the expiration of the applicable “distribution compliance period” (as defined below), it acknowledges that (A) until the expiration of such “distribution compliance period” any offer or sale of the Units shall not be made by it to a U.S. Person or for the account or benefit of a U.S. Person within the meaning of Rule 902(k) of the Securities Act and (B) until the expiration of the “distribution compliance period,” it may not, directly or indirectly, refer, resell, pledge or otherwise transfer a Unit or any interest therein except to a person who certifies in writing to the Company that such transfer satisfies, as applicable, the requirements of the legends described herein and that the Units will not be accepted for registration of any transfer prior to the end of the applicable “distribution

compliance period” unless the transferee has first complied with certification requirements described in this Section. The “distribution compliance period” means the one-year period following the issue date for the Units.

(r) The Subscriber acknowledges and agrees to comply with all of his or her obligations set forth in the EB-5 Job Allocation Addendum attached to the Operating Agreement as Schedule 2, and all of the Subscriber’s representations, warranties and agreements set forth therein are hereby incorporated herein by reference into the Operating Agreement and this Agreement.

(s) The Subscriber acknowledges and agrees that (i) the Manager, Regional Center, Borrower and the Developer, have not given, and have no authority to give, any investment advice with respect to the purchase of a security; and (ii) a prospective Subscriber has not requested or otherwise sought any such investment advice from the Manager, Regional Center, Borrower and/or the Developer.

(t) The Subscriber acknowledges and agrees that (i) the Regional Center is unaffiliated with the Borrower, Developer, Developer Principal, Manager, Company and Fund Administrator; and (ii) the Regional Center makes no representations about the Project and developer-related information in the Project Business Plan or documents related thereto or the investment the Subscriber is making.

(u) Each Subscriber agrees to provide the Company with semi-annual status updates on their immigration status with USCIS. The Company will thereafter be responsible to notify the Regional Center of same.

(v) In compliance with the New EB-5 Legislation and the I-526E Petition, the Subscriber hereby warrants and represents that Subscriber (i) is not an official or representative of a foreign government entity; (ii) has not provided capital to a regional center, new commercial enterprise or job-creating entity derived from an agency, official or other similar entity or representative of a foreign government entity; and (iii) does not own or administer a regional center, new commercial enterprise, or job-creating entity subject to the direct or indirect involvement of an agency, official or other similar entity or representative of a foreign government entity.

(w) The Subscriber acknowledges and confirms that Subscriber has carefully reviewed all the terms of admissibility that Subscriber would be subject to, through the EB-5 application process, under Section 212(a) of the Immigration Act, 8 U.S.C. § 1182(a). Subscriber further acknowledges and confirms that Subscriber (i) does not run afoul of any of the eligibility criteria outlined in Section 212(a) of the Immigration Act; and (ii) is not a “prohibited person” under Section 203(b)(5)(H) of the Immigration Act.

(x) The Subscriber acknowledges and confirms that the funds that will be used for payment of Subscriber’s Capital Contribution and Administrative Fee are not derived from any unlawful activities under the laws of the United States and any other jurisdiction that the Subscriber now resides in or has ever resided in. Subscriber further acknowledges and confirms that

Subscriber will accurately disclose the history and explanation of where Subscriber's funds originated in Subscriber's I-526E Petition.

7. Withholding Tax. The Subscriber acknowledges that while Subscriber is a non-U.S. person, the Company will be obligated to withhold United States income taxes on Subscriber's allocable share of the Company's income and remit such taxes to the Internal Revenue Service, pursuant to Section 1446 of the Internal Revenue Code, and the Subscriber consents to such withholding.

8. Confirmation. All information that the Subscriber has provided anywhere in this Agreement concerning the Subscriber and the Subscriber's financial position is correct and complete as of the date set forth below, and if there should be any material change in such information prior to the acceptance of the Subscriber's subscription for the Unit that is being purchased, the Subscriber will immediately provide such information to the Manager.

9. The Company Representations.

(a) The Company hereby agrees and acknowledges that the Company shall refuse to register any transfer of Units not made in accordance with the provisions of Regulation S of the Securities Act (§§ 230.901 through 230.905, and Preliminary Notes), pursuant to registration under the Securities Act, or pursuant to an available exemption from registration; provided, however, that if the Units are in bearer form or foreign law prevents the Company from refusing to register securities transfers, other reasonable procedures (such as a legend described in paragraph (b)(3)(iii)(B)(3) of Rule 903 of the Securities Act) are implemented to prevent any transfer of the Units not made in accordance with the provisions of Regulation S of the Securities Act.

(b) The Company hereby agrees to ensure that each distributor selling Units to a distributor, a dealer (as defined in section 2(a)(12) of the Securities Act (15 U.S.C. 77b(a)(12))), or a person receiving a selling concession, fee or other remuneration, prior to the expiration of a one-year distribution compliance period (or six-month distribution compliance period if the issuer is a reporting issuer) sends a confirmation or other notice to the purchaser stating that the purchaser is subject to the same restrictions on offers and sales that apply to a distributor.

10. Consultation with Independent Counsel and Tax Advisor. The Subscriber's investment in the Units is an investment in the equity of a Delaware limited liability company, which confers certain rights and liabilities upon the Subscriber pursuant to Delaware law and the Operating Agreement. Subscriber has been advised that Subscriber should consult with his or her own legal and tax advisors prior to executing this Agreement, acquiring a Unit or consummating the transactions contemplated hereby. Subscriber understands that the lawyers(s) for the Company, Regional Center, Borrower and Developer represent only these entities in connection with the transactions contemplated by this Agreement, and do not represent the Subscriber, and such lawyer(s) make no representation regarding the Regional Center, the Company, the Borrower, the Developer or the Subscriber's investment in Units.

11. Indemnification. Subscriber hereby agrees to indemnify and hold harmless the Regional Center, the Company, the Manager, the Borrower, the Developer, and their affiliates, and

the respective employees, agents and attorneys of the foregoing against any and all losses, claims, demands, liabilities and expenses (including reasonable legal or other expenses) incurred by each such person or entity in connection with any claims or liabilities, whether or not resulting in any liability to such person or entity, to which any such indemnified party may become subject under the Securities Laws, under any other statute, at common law or otherwise, insofar as such losses, claims, demands, liabilities and expenses (a) arise out of or are based upon any untrue statement or alleged untrue statement of a material fact made by Subscriber, or (b) arise out of or are based upon any breach of any representation, warranty or agreement of Subscriber contained herein.

12. Investor Information Form and Form W-8BEN. Subscriber shall complete and fully execute, together with this Agreement, the Investor Information Form and Certificate of Foreign Status of Beneficial Owner for United States Tax Withholding (W-8BEN), attached hereto as **Exhibits A and B**, respectively.

13. Miscellaneous.

(a) Severability. In the event any portion of this Agreement is found to be invalid, illegal, or unenforceable in any jurisdiction, the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, and such invalidity, illegality or unenforceability in a jurisdiction shall not affect the validity, legality or enforceability of any portions of this Agreement in any other jurisdiction.

(b) Entire Agreement; Amendment; Waiver. This Agreement constitutes the entire agreement between the parties and supersedes all prior oral and written agreements between the parties hereto with respect to the subject matter hereof. Neither this Agreement nor any provision hereof may be amended, modified, changed, waived, discharged or terminated orally, except by a statement in writing signed by the party or parties against which enforcement or the change, waiver, discharge or termination is sought. No waiver of any provision of this Agreement shall be effective unless it is in writing and signed by the party against whom it is asserted, and any such written waiver shall only be applicable to the specific instance to which it relates and shall not be deemed to be a continuing or future waiver.

(c) Governing Law; Venue; Jurisdiction; Arbitration. This Agreement and any dispute, disagreement, or issue of construction or interpretation arising hereunder whether relating to its execution, its validity, and the obligations provided therein or performance thereof shall be governed or interpreted according to the laws of the State of Delaware, without giving effect to the conflict of laws provisions thereof. Any litigation arising under this Agreement shall be prosecuted exclusively in the state or federal courts residing in Miami-Dade County, Florida and each of the parties consents to the jurisdiction of such courts (and of the appropriate appellate courts) in any such action or proceeding and waives any objection to venue laid therein or for lack of personal jurisdiction. Process in any action or proceeding referred to in the preceding sentence may be served on any party anywhere in the world. This Subscription Agreement hereby incorporates the Arbitration provisions contained in the Operating Agreement by reference as if it was stated herein.

(d) Litigation. Subject to the provisions set forth in Section 13(c) herein, the Company shall prosecute and defend such actions at law or in equity as may be necessary to

enforce or protect the interest of the Company. The Company shall respond to any final decree, judgment or decision of any court, board or authority having jurisdiction in the premises. The Company shall satisfy any such judgment, decree or decision, first out of any insurance proceeds available therefor, and next out of assets of the Company. The cost of defending any actions brought against the Company and/or the Manager with respect the Company matters shall be borne by the Company except as otherwise provided in this Agreement.

(e) Waiver of Jury Trial. EACH PARTY TO THIS SUBSCRIPTION AGREEMENT HEREBY IRREVOCABLY WAIVES ALL RIGHT TO TRIAL BY JURY IN ANY SUIT, ACTION, CLAIM, DEMAND, PROCEEDING OR COUNTERCLAIM ARISING FROM, INCIDENT TO OR OTHERWISE IN CONNECTION WITH THIS SUBSCRIPTION AGREEMENT.

(f) Notices. All notices, offers, acceptance and any other acts under this Agreement (except payment) shall be in writing, and shall be sufficiently given if delivered to the addressee in person, by Federal Express or similar receipted delivery, or if mailed, postage prepaid, by certified mail, return receipt requested, as follows:

Subscriber: At the address designated on the signature page of this Agreement.

The Company: Okan Tower EB-5 Lender, LLC
c/o Okan Tower EB-5 Manager, LLC
205 Worth Avenue, Suite 201R
Palm Beach, FL 33480
Attention: Kevin Wright
Phone: (424) 777-5562
Email: kevin@aiiceb5.com

or to such other address as either of them, by notice to the other may designate from time to time.

(g) Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same instrument. The execution of this Agreement may be by actual or facsimile signature.

(h) Survival of Representations, Warranties and Agreements. The representations, warranties and agreements contained herein shall survive the delivery of, and payment for, the Unit.

(i) Assignability. This Agreement and the rights and obligations hereunder and the Units contemplated to be purchased hereunder are not transferable or assignable by the Subscriber without the prior written consent of the Company, and any such attempted transfer or assignment shall be void *ab initio* except as provided in the Operating Agreement. Before consenting to any such assignment, the Regional Center may require a proposed assignee to take certain actions and execute certain documents, including, without limitation, executing a separate subscription agreement, as the Regional Center may reasonably determine.

(j) Benefit. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their legal representatives, successors, and assigns.

(k) English Language. The English language text of this Agreement has been translated to a language in which the Subscriber is competent and the Subscriber understands all of the provisions of this Agreement. The English language text and American usage thereof shall control the interpretation and construction of this Agreement and all other writings between the parties.

PLEASE SEE ATTACHED, AS AN ADDENDUM TO THIS SUBSCRIPTION AGREEMENT, THE SUBSCRIBER CERTIFICATION, AS REQUIRED UNDER THE NEW EB-5 LEGISLATION.

(Signatures appear on the following page.)

IN WITNESS WHEREOF, the undersigned Subscriber has executed this Subscription Agreement, as of the date set forth below.

SUBSCRIBER:

[Social Security Number or FEI Number] (if any)

Print Exact Name of Subscriber

Date of Subscriber's Execution

Signature of Subscriber*

Total Subscription Payment:

\$ _____

Country where Executed

Subscriber Address: _____

Telephone: _____

Tax I.D. or Social Security #: _____

Number of Units: _____

Email Address: _____

CUSTODIAN/GUARDIAN:

To the extent that the Subscriber is a minor child under applicable law (usually 18 years old), including the applicable jurisdiction provided for in the Offering documents, a signature of the Subscriber's Custodian/Guardian must accompany the signature of the minor in order to validate the Subscription Agreement.

The below Custodian/Guardian hereby acknowledges that, on behalf of the minor Subscriber, he or she certifies that he or she (i) has read and understands the Subscription Agreement of Okan Tower EB-5 Lender, LLC and all other documents referenced therein; (ii) approves the terms and conditions of all such documents referenced therein on behalf of said minor Subscriber; (iii) is signing this Subscription Agreement as the authorized Custodian/Guardian of the minor Subscriber; and (iv) has the authority to bind the Subscriber to the Subscription Agreement.

_____, as Custodian/Guardian for _____ under
the Delaware Uniform Transfers to Minors Act

Signature of Custodian/Guardian

Country Where Executed

*

(Signature of Attorney-In-Fact for the Subscriber)

(Print Exact Name of Attorney-In-Fact for the Subscriber)

ADDENDUM TO SUBSCRIPTION AGREEMENT OF OKAN TOWER EB-5 LENDER, LLC

[All capitalized terms used but not otherwise defined herein shall have the meanings ascribed to such terms in the Subscription Agreement (defined below).]

This Addendum (the “**Addendum**”) to that certain Subscription Agreement (the “**Subscription Agreement**”) of Okan Tower EB-5 Lender, LLC, a Delaware limited liability company (the “**Company**”), hereby provides that, pursuant to the provisions of the New EB-5 Legislation, the Subscriber must acknowledge the payment, *if applicable*, of all fees being paid directly by the Company to sponsors, affiliated and unaffiliated parties as set forth in disclosure requirements of the New EB-5 Legislation.

In view of the foregoing, the following sets forth a list of the relevant parties being compensated directly by the Company in connection with the undersigned Subscriber’s subscription hereunder. No fee payments identified below originate from Capital Contributions of any Investing Members.

1. Regional Center Compensation:

a. Name of Regional Center: Florida First Regional Center, LLC.

b. Pursuant to the Regional Center Agreement, as full and complete consideration for the Regional Center’s performance of its services rendered, the Company shall pay the Regional Center the following fees after the Company has been paid from the JCE:

(i) Service Fees.

(1) An initial, non-refundable affiliation fee of \$30,000, payable upon the execution of the Regional Center Agreement by wire transfer of immediately available funds to the Regional Center (the “**Initial Fee**”); and

(2) a per investor fee (one-time) from the Administrative fee of \$2,500 as each Investing Member subscribes to the Company and deposits his or her Administrative Fee in the Company’s escrow account (the “**One-Time Administrative Fee**”). Note, to the extent the Company waives the Administrative Fee for a particular Investing Member, the JCE shall be liable for paying the One-Time Administrative Fee.

(3) an annual fee for each Investing Member (the “**Annual Per Investor Fee**”) payable as follows:

(A) 0.30% of the investment amount of \$800,000 or \$2,400 per Investing Member per year until all EB-5 capital contributions in the Project are repaid to Investing Members.

Note, in the event the Borrower has repaid the EB-5 Investment, to the extent Investing Members remain invested in the Company and have not yet received final adjudication of their respective Form I-829 Petitions, then, the Company and/or the JCE shall be responsible for the pro rata share of the EB-5 Integrity Fund Contribution (as defined below). The pro rata share of the EB-5 Integrity Fund Contribution shall be due and payable by wire transfer of immediately available funds to the Regional Center within ten (10) days after September 30th of each applicable calendar year during the Term.

(ii) Termination Fees. In the event that after execution and delivery of the Regional Center Agreement, Company or JCE causes the Project to cease operations for a period of twelve (12) months or longer due to an act of God, extreme market volatility or other market, economic, political or other conditions (each a “**Market Effect**”), as reasonably determined by the Regional Center, as the case may be, the Regional Center, in its sole discretion, may terminate this Agreement by providing notice to the Company. In the event the Company or JCE become affiliated with or sponsored by another regional center for any reason outside of a Market Effect, the Company shall immediately notify the Regional Center of such affiliation, and shall pay a termination fee to the Regional Center equal to thirty percent (30%) of the Annual Per Investor Fees that the Regional Center would have otherwise earned and been paid under the Regional Center Agreement but for such termination for a period of two (2) years from the date of the Termination (the “**Termination Fee**”). The Termination Fee, if applicable, shall be due and payable thirty (30) days after (i) the Regional Center provides written notice to Company and JCE of the termination of this Agreement; or (ii) the Regional Center provides written notice of termination based upon its receipt of evidence of Company’s or JCE’s association with another regional center.

(iii) Reimbursement of Expenses. Company shall reimburse the Regional Center for all actual and reasonable legal fees and expenses incurred by it in connection with its review of the Transaction Documents (as defined below), which include without limitation, the negotiation of this Agreement, and the time to review, finalize, and sign off on the filing of the Form I-956F. The amount for such review work has been fixed at \$7,500 and shall be payable upon the execution of the Regional Center Agreement by wire transfer of immediately available funds to the Regional Center (the “**Compliance Review Fee**”). For the avoidance of doubt, the Compliance Review Fee does not include the expenses relating to the (i) preparation and filing of the I-956F, or (ii) the cost to engage, as required by the Act, (A) an independent auditor and (B) an independent construction consultant, as applicable, the cost of each of which expenses shall be borne by, and be the sole obligation of, Company.

(iv) EB-5 Integrity Fund Contribution and USCIS Annual Filing Fees. Pursuant to the Act, the Regional Center shall make a contribution of \$20,000 (or \$10,000 if the Regional Center has 20 or fewer Investing Members at the end of the fiscal year), to an EB-5 Integrity Fund administered by USCIS. The obligation to pay this contribution will be shared pro rata, in equal shares, by the Company and all other third parties with projects sponsored by the Regional Center (the “**EB-5 Integrity Fund Contribution**”). The Company shall be responsible for its pro rata portion of the EB-5 Integrity Fund Contribution, regardless of the date of this Agreement and whether or not the Company has subscribed Investing Members. Furthermore, the Regional Center is required to make an annual filing with USCIS which is titled the Form I-956G, Regional Center

Annual Statement (the “**Form I-956G**”), which as of the date hereof costs \$4,470. Such Form I-956G filing fee and/or other increased amount as USCIS may increase from time to time shall be shared pro rata, in equal shares, by the Company and all other third parties with projects sponsored by the Regional Center.

(v) Additional or Increased Fees. In the event that any additional or increased fees, expenses, contributions, costs, or other additional expenditures (annual, quarterly, one-time, or any other frequency), including any oversight or regulatory fees, are incurred by the Regional Center as a result of any USCIS or any other governmental action including, but not limited to, new, amended or revised legislation in connection with the EB-5 Program, new or revised U.S. federal law and the rules established and administered by USCIS, guidelines, requirements, or any other applicable law (the “**Regulatory Fees**”), such Regulatory Fees shall be divided, pro rata, in equal shares, on an annual basis among the Company and any other third parties with projects sponsored by the Regional Center. These fees, if any, shall be in addition to all other fees listed in the Regional Center Agreement. In the event that any Regulatory Fees are incurred by the Regional Center, the Regional Center shall provide an invoice to the Company with respect to the Company’s share of such Regulatory Fees.

(vi) Monetary Fines. The Company agrees that any monetary fines imposed on the Regional Center by USCIS, the U.S. Securities and Exchange Commission, or another government agency, which directly results from the actions or inactions of the Company, the JCE, or the Project, shall be the sole responsibility of the Company. The Company shall, at the direction of the Regional Center, either directly pay such monetary fines or reimburse the Regional Center for its payment of such fines.

(vii) Regional Center Ongoing Legal Fees. The Company has committed to reimbursing the Regional Center for any legal fees incurred by the Regional Center during each fiscal year up to a maximum of \$5,000 in relation to any work associated with the Company, the JCE or the Project. Such fees are not guaranteed to be incurred and the Regional Center shall properly communicate same with the Company in the event they are incurred.

2. Manager Compensation:

a. Name of Manager: Okan Tower EB-5 Manager, LLC

b. The Manager shall receive management fees for services rendered (the “**Management Fees**”) as follows:

(i) an initial one-time due diligence fee of \$25,000.

(ii) \$5,000 per month until three (3) Subscribers who subscribed have subscribed for Units hereunder, at which time the Manager shall receive an amount equal to nine-tenths percent (0.9%) per annum of interest income from the EB-5 Loan payable monthly.

(iii) a one-time \$5,000 fee with respect to each Subscriber who subscribes for a Unit hereunder.

c. Portion of ongoing Interest payments received by the Company: The remaining four and one-half percent (4.5%) per annum of interest income shall be allocated to the Manager on a monthly basis (the “**Manager Allocation**”) to pay for the Company’s operational expenses, including, without limitation, costs and expenses related to Third-Party Agents which is expected to be approximately \$35,000 per Subscriber), Regional Center, Fund Administrator and the Manager’s Management Fees, with the balance being retained by the Manager.

d. Portion of Administrative Fee: Any amount remaining after payment to the finder/migration agents, as set forth below.

3. Finder/Migration Agent Compensation:

- a. Name of Master Agent*: _____
- b. Portion of ongoing Interest payments received by the Company: _____.
- c. Portion of Administrative Fee: _____.

* Master Agent will be responsible to pay all subagents/finders engaged by it from the compensation received by the Master Agent

IN WITNESS WHEREOF, the undersigned Subscriber has executed this Addendum to Subscription Agreement for OKAN TOWER EB-5 LENDER, LLC, as of the date set forth below.

SUBSCRIBER:

Print Exact Name of Subscriber

Signature of Subscriber*

Date of Subscriber's Execution

CUSTODIAN/GUARDIAN:

To the extent that the Subscriber is a minor child under applicable law (usually 18 years old), including the applicable jurisdiction provided for in the Offering documents, a signature of the Subscriber's Custodian/Guardian must accompany the signature of the minor in order to validate the Subscription Agreement.

The below Custodian/Guardian hereby acknowledges that, on behalf of the minor Subscriber, he or she certifies that he or she (i) has read and understands the Subscription Agreement of Okan Tower EB-5 Lender, LLC and all other documents referenced therein; (ii) approves the terms and conditions of all such documents referenced therein on behalf of said minor Subscriber; (iii) is signing this Subscription Agreement as the authorized Custodian/Guardian of the minor Subscriber; and (iv) has the authority to bind the Subscriber to the Subscription Agreement.

_____, as Custodian/Guardian for _____ under
the Delaware Uniform Transfers to Minors Act

Signature of Custodian/Guardian

Country Where Executed

*

(Signature of Attorney-In-Fact for the Subscriber)

(Print Exact Name of Attorney-In-Fact for the Subscriber)

ACCEPTANCE

By signing below, the undersigned accepts the foregoing subscription for membership interests in OKAN TOWER EB-5 LENDER, LLC, in accordance with the terms hereof, for:

Subscriber Name: _____

OKAN TOWER EB-5 LENDER, LLC

By: Okan Tower EB-5 Manager, LLC, its Manager

By: _____

Name: _____

Title: _____

Dated: _____

EXHIBIT A

INVESTOR INFORMATION FORM

Participant

NAME:		☐ Person
DATE OF BIRTH:		
MAILING ADDRESS:	CITY:	STATE:
PROVINCE/COUNTY/SUBDIVISION:	COUNTRY:	ZIP/POSTAL CODE:
TELEPHONE NUMBER: (Day)	(Evening)	E-MAIL:
UNEXPIRED PHOTO GOVERNMENT ID NUMBER:	TYPE OF UNEXPIRED PHOTO GOVERNMENT ID:	
ISSUANCE DATE:	EXPIRATION DATE:	
COUNTRY OF GOVERNMENT IDENTIFICATION:	STATE/PROVINCE SUBDIVISION OF GOVERNMENT IDENTIFICATION:	
UNEXPIRED PHOTO GOVERNMENT ID NUMBER:	TYPE OF UNEXPIRED PHOTO GOVERNMENT ID:	
ISSUANCE DATE:	EXPIRATION DATE:	
COUNTRY OF GOVERNMENT IDENTIFICATION:	STATE/PROVINCE SUBDIVISION OF GOVERNMENT IDENTIFICATION:	
NOTE: Unexpired Photo Government Identification should be provided for all nonresidential aliens, along with an IRS Form W-8BEN		

SIGNATURE

Please review your information above and the Subscription Agreement in its entirety, and sign below. THE UNDERSIGNED REPRESENTS AND WARRANTS THAT THE INFORMATION PROVIDED IN THIS INVESTOR INFORMATION FORM IS TRUE, COMPLETE AND ACCURATE.

SIGNATURE: _____ DATE: _____

Participant Information

The legal address **MUST** be a street address. A post office box is not acceptable for a legal address. A legal address is the person's permanent residence address or, in the case of an entity, the place where it maintains a physical presence. For those investments by nonresident aliens and foreign entities, the legal address must be the same as the permanent residence address listed on IRS Form W-8BEN.

NOTE: To help the government fight the funding of terrorism and money laundering activities, federal law requires certain "financial institutions" to obtain, verify, and record information that identifies each investor. When you invest, we will ask for your name, address, date of birth, and other information that will allow us to identify you. We may also ask you to provide a copy of your driver's license or other identifying documents. The information you provide in this form may be used to perform a credit check and verify your identity by using internal sources and third-party vendors. If additional space is needed, please attach a separate sheet.

EXHIBIT B

CERTIFICATE OF FOREIGN STATUS OF BENEFICIAL OWNER FOR UNITED STATES TAX WITHHOLDING

Form W-8BEN (Rev. October 2021) Department of the Treasury Internal Revenue Service	Certificate of Foreign Status of Beneficial Owner for United States Tax Withholding and Reporting (Individuals) ► For use by individuals. Entities must use Form W-8BEN-E. ► Go to www.irs.gov/FormW8BEN for instructions and the latest information. ► Give this form to the withholding agent or payer. Do not send to the IRS.	OMB No. 1545-1621
Do NOT use this form if:		
• You are NOT an individual W-8BEN-E • You are a U.S. citizen or other U.S. person, including a resident alien individual W-9 • You are a beneficial owner claiming that income is effectively connected with the conduct of trade or business within the United States (other than personal services) W-8ECI • You are a beneficial owner who is receiving compensation for personal services performed in the United States 8233 or W-4 • You are a person acting as an intermediary W-8IMY		
Note: If you are resident in a FATCA partner jurisdiction (that is, a Model 1 IGA jurisdiction with reciprocity), certain tax account information may be provided to your jurisdiction of residence.		
Part I Identification of Beneficial Owner (see instructions)		
1 Name of individual who is the beneficial owner		2 Country of citizenship
3 Permanent residence address (street, apt. or suite no., or rural route). Do not use a P.O. box or in-care-of address.		
City or town, state or province. Include postal code where appropriate.		Country
4 Mailing address (if different from above)		
City or town, state or province. Include postal code where appropriate.		Country
5 U.S. taxpayer identification number (SSN or ITIN), if required (see instructions)		
6a Foreign tax identifying number (see instructions)	6b Check if FTIN not legally required ☐	
7 Reference number(s) (see instructions)	8 Date of birth (MM-DD-YYYY) (see instructions)	
Part II Claim of Tax Treaty Benefits (for chapter 3 purposes only) (see instructions)		
9 I certify that the beneficial owner is a resident of _____ within the meaning of the income tax treaty between the United States and that country.		
10 Special rates and conditions (if applicable—see instructions): The beneficial owner is claiming the provisions of Article and paragraph _____ of the treaty identified on line 9 above to claim a _____ % rate of withholding on (specify type of income): _____		
Explain the additional conditions in the Article and paragraph the beneficial owner meets to be eligible for the rate of withholding: _____		
Part III Certification		
Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:		
• I am the individual that is the beneficial owner (or am authorized to sign for the individual that is the beneficial owner) of all the income or proceeds to which this form relates or am using this form to document myself for chapter 4 purposes; • The person named on line 1 of this form is not a U.S. person; • This form relates to: (a) income not effectively connected with the conduct of a trade or business in the United States; (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an applicable income tax treaty; (c) the partner's share of a partnership's effectively connected taxable income; or (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f); • The person named on line 1 of this form is a resident of the treaty country listed on line 9 of the form (if any) within the meaning of the income tax treaty between the United States and that country; and • For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.		
Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which I am the beneficial owner or any withholding agent that can disburse or make payments of the income of which I am the beneficial owner. I agree that I will submit a new form within 30 days if any certification made on this form becomes incorrect.		
☐ I certify that I have the capacity to sign for the person identified on line 1 of this form.		
Sign Here ►		
Signature of beneficial owner (or individual authorized to sign for beneficial owner)		Date (MM-DD-YYYY)
Print name of signer		
For Paperwork Reduction Act Notice, see separate instructions. Cat. No. 25047Z Form W-8BEN (Rev. 10-2021)		